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[Features](#)
[Opinion](#)
[Arts & Culture](#)
[Science](#)
[Sports](#)
[Photos](#)
[Illustrations](#)
[Video](#)
[Magazine](#)
[Crosswords](#)

NEWS



The Faculty of Law is facing allegations of interference in a hiring controversy. MICHAEL PHOON/THE VARSITY

U of T law students “deeply concerned” by allegations of judicial interference in hiring

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By **Isabel Armiento** — Published September 27, 2020

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After recent allegations that the Faculty of Law allowed external judicial pressure to influence its internal hiring process, many students involved with the Faculty of Law's International Human Rights Program (IHRP) have expressed concern. The faculty, however, denies the allegations.

As reported in *The Globe and Mail* and the *Toronto Star*, the Faculty of Law allegedly offered the position of director of the IHRP to Valentina Azarova, a respected academic who has published criticism of Israel's policies in occupied Palestinian territories. Azarova told *The Globe and Mail* that she had accepted an oral offer for the position.

The faculty is alleged to have later rescinded the offer due to pressure from Justice David Spiro, a member of the Tax Court of Canada and U of T alum. Spiro has been involved with the faculty's past fundraising events, and several of his family members are notable donors to the university.

The allegations were met with widespread condemnation, both at U of T and globally. Law professor Audrey Macklin, the chair of the hiring committee that recommended Azarova, resigned immediately upon hearing the allegation of interference.

All three members of the program's faculty advisory board resigned on September 16, and Vincent Wong, one of the program's two research associates, resigned on September 17. According to *The Globe and Mail*, these resignations were due to concerns about an unfair process, unclear reasons for the faculty's decision, and a lack of collegiality.

Human rights group Amnesty International threatened to terminate its four-year partnership with the IHRP if the Faculty of Law didn't offer transparency and accountability in light of the allegations.

Faculty of Law, U of T denies the allegations

Dean Edward Iacobucci denied the allegations in an email to the faculty. He wrote, “Assertions that outside influence affected the outcome of that search are untrue and objectionable. University leadership and I would never allow outside pressure to be a factor in a hiring decision.”

Iacobucci continued to assert that the accusation that he had offered and rescinded the director position to Azarova was also false. Though the faculty had been in communication with Azarova about the position, ultimately “no offer of employment was made because of legal constraints on cross-border hiring that meant that a candidate could not meet the Faculty’s timing needs,” he wrote.

“Other considerations, including political views for and against any candidate, or their scholarship, were and are irrelevant.”

Kelly Hannah-Moffat, Vice-President Human Resources and Equity, wrote in an email that the allegations of interference are not true and noted that some information about the situation has been published out of context.

Law students express concerns

On September 17, the U of T Students’ Law Society (SLS) published an open letter in response to the “disturbing” allegations. “We are deeply concerned about the allegations... which allege judicial interference with the Faculty’s hiring process,” wrote the SLS in its open letter. “These allegations suggest that... the Faculty has compromised its commitment to academic freedom.”

Students involved with the IHRP are also troubled by the situation. “To say the least, the allegations are quite disappointing and troubling,” Abdullah Khan, a second-year Juris Doctor (JD) student, said in an interview with *The Varsity*. “The IHRP has been an integral part of the law school. It’s one of the reasons why scholars come to the Faculty of Law, because the program is so well regarded and has a major impact.”

Khan worries that the allegations have put the program’s international reputation in jeopardy and potentially compromised the IHRP’s ability to do important human rights work. “It’s been allowed to do its work because

of its independence,” he said.

Kristen Kephalas, a fourth-year JD and global affairs student, expressed her disappointment with the Faculty of Law. “Those of us who have been involved with the IHRP as fellows and clinic students... have benefitted from the IHRP in both tangible and intangible ways, from grant funding to professional experience and mentoring,” she wrote to *The Varsity* in an email. “It feels like a personal affront to hear allegations that the administration would put the integrity of the program at risk to appease its donors.”

“The allegations create reputational risk for the program, its partners, and its projects and erode the efficacy of the IHRP as a legal advocacy group,” Kephalas added. “As a law school there is an added obligation on the administration to conduct itself ethically.”

Joshua Eisen, a third-year JD student, wrote to *The Varsity* in an email that if the allegations of judicial interference are true, “the Faculty of Law has compromised its commitment to academic freedom.” He also noted that the reputation of the IHRP was central to his decision to come to U of T for law school. “I find the willingness of the law school to essentially undermine the IHRP for external political reasons deeply disturbing,” Eisen wrote.

Other concerns

For Eisen, the controversy also exposes more than just unethical hiring practises.

“It points to a disturbing general tendency to clamp down on any criticism of Israel, regardless of its legitimacy,” he wrote. “Dr. Azarova’s scholarship on Israeli human rights abuses in the occupied Palestinian territories is completely within the bounds of legitimate academic research; she is an expert in International law and her work has appeared in various peer-reviewed journals. While it may be politically unpalatable for some, her work is not even particularly controversial.”

“By bowing to external pressure, the university is contributing to a climate in which criticism of Israel is often suppressed, sometimes by couching it as anti-Semitic,” Eisen added. “As a Jew I find this trend offensive.”

Eisen also expressed concern over the program's future, as the director position remains vacant. "From what I understand, the program has been languishing without permanent leadership for some time now, and someone like Dr. Azarova would have been a great fit," he wrote.

Kephalas voiced a similar frustration. "This controversy highlights how human rights as an area of law is undervalued by the Faculty," she wrote. "The program has already been without a permanent director for a year. If this situation isn't resolved, students who rely on the IHRP will lose out on human rights education that is not offered anywhere else at the Faculty."

Tags: Faculty of Law, law

